



FHA/VA Amendatory Clause No. 1

(C.A.R. Form FVAC, Reviewed 6/25)

This is an addendum to the Purchase Agreement, OR ☐ Other _____

dated 05/30/2026, on property known as 9985 Wendell Rd, Mountain Ranch, Ca 95246 ("Agreement"),
between David Allen Hopkins, Stacy Ann Gebhart ("Property"),
and Marshall Graham Guthrie ("Buyer"),
Buyer and Seller are referred to as the "Parties". ("Seller").

☐ Due to a modification of the price stated in a previous amendatory clause, this FHA/VA Amendatory Clause reflects the current purchase price and supersedes any previous amendatory clause.

1. "It is expressly agreed that notwithstanding any other provisions of this contract, the purchaser shall not be obligated to complete the purchase of the property described herein or to incur any penalty by forfeiture of earnest money deposits or otherwise unless the purchaser has been given in accordance with HUD/FHA or VA requirements a written statement by the Federal Housing Commissioner, Department of Veterans Affairs, or a Direct Endorsement lender setting forth the appraised value of the property of not less than \$ 375,000.00. The purchaser shall have the privilege and option of proceeding with consummation of the contract without regard to the amount of the appraised valuation. The appraised valuation is arrived at to determine the maximum mortgage the Department of Housing and Urban Development will insure or Department of Veterans Affairs will guaranty. Neither HUD or VA warrant the value or the condition of the property. The purchaser should satisfy himself/herself that the price and condition of the property are acceptable."

If, after signing this Amendatory Clause, the purchase price increases, Buyer and Seller agree to sign, before Close Of Escrow, a new amendatory clause that reflects the final purchase price agreed to by Buyer and Seller.

For FHA transactions, the Amendatory Clause is not required on HUD REO sales, sales where the seller is Fannie Mae, Freddie Mac, the Department of Veterans Affairs, Rural Housing Services, other Federal, State and local government agencies, mortgagees disposing of REO assets, or sellers at foreclosure sales and those sales where the borrower will not be an owner-occupant (e.g., sales to nonprofit agencies).

2. **CERTIFICATION:** The undersigned Buyer, Seller, and real estate agent(s) or broker(s) hereby certify that the terms and conditions of the sales contract referenced above are true to the best of their knowledge and belief and that any other agreement entered into by any of the parties in connection with the real estate transaction is part of, or attached to, the sales agreement.

WARNING: It is a crime to knowingly make false statements to the United States on this or any other similar form. Penalties can include fine, imprisonment, or both. Title 18 U.S. Code § 1001 et seq.

By signing below, Buyer and Seller acknowledge that each has received a copy of this FHA/VA Amendatory Clause, and each has read, understands, and agrees to its terms.

Buyer	<u>David Allen Hopkins</u>	<u>David Allen Hopkins</u>	Date	<u>05/31/2026</u>
Buyer	<u>Stacy Ann Gebhart</u>	<u>Stacy Ann Gebhart</u>	Date	<u>05/31/2026</u>
Seller	<u>Marshall Graham Guthrie</u>	<u>Marshall Graham Guthrie</u>	Date	<u>06/02/26</u>
Seller			Date	

Buyer's Real Estate Broker	<u>Legacy Properties</u>	DRE Lic. #	<u>02254944</u>
By	<u>Sara Cooper</u>	DRE Lic. #	<u>02141987</u>
Address	<u>4149 Cedar Cir</u>	City	<u>Angels Camp</u>
Telephone	<u>(209)559-4966</u>	Email	<u>sarasellscalifornia@gmail.com</u>
Seller's Real Estate Broker	<u>Busy Bee Realty</u>	DRE Lic. #	<u>01980717</u>
By	<u>Audrey M Burton</u>	DRE Lic. #	<u>02013233</u>
Address	<u>8B California St</u>	City	<u>Valley Springs</u>
Telephone	<u>209-607-8660</u>	Email	<u>audreybusybeerealty@gmail.com</u>

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FOR YOUR PROTECTION: GET A HOME INSPECTION

Required For FHA Transactions

(C.A.R. Form HID, Revised 12/23)

Why You Need a Home Inspection

Buying a home is probably the biggest investment you will ever make. The purpose of a home inspection is to inform and educate you about the property before you make a financial commitment. A home inspection will give you more detailed information about the overall condition of the house you want to buy.

Be an Informed Buyer

A home inspection will only occur if you arrange for one; FHA does not perform home inspections. For a fee, a qualified inspector will take an unbiased look at your potential new home to evaluate its physical condition; estimate the remaining useful life of the major systems, equipment, structure, and finishes; and identify any items that need to be repaired or replaced. If you request an inspection early in the process, you may be able to make your purchase contract contingent on its results.

What is Included in the Inspection?

To better understand what to expect in the home inspection, ask the prospective inspector for their Standards of Practice (SOP) or for a sample home inspection report.

How to Find an Inspector

To find a qualified home inspector ask for references from friends, real estate professionals, local licensing authorities and organizations that qualify and test home inspectors.

Appraisals are NOT Home Inspections!

An appraisal is required to estimate the home's value for your lender and does not replace a home inspection. FHA does not guarantee the value or condition of your new home. If you find problems with your home after closing, FHA cannot give or lend you money for repairs, and FHA cannot buy the home back from you.

Radon Gas Testing and Other Health or Safety Issues

The Environmental Protection Agency and the Surgeon General recommend that all houses be tested for radon. For more information, call the toll-free National Radon Information Line at 1-800-SOS-Radon (1-800-767-7236). Ask your inspector if additional health and safety tests are relevant for your home, such as mold; air or water quality; presence of asbestos, lead paint, or urea formaldehyde insulation; or pest infestations.

I(we) acknowledge receipt of this For Your Protection: Get a Home Inspection.

Buyer:		David Allen Hopkins	Date	05/31/2026
Buyer:		Stacy Ann Gebhart	Date	05/31/2026

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FOR YOUR PROTECTION: GET A HOME INSPECTION (HID PAGE 1 OF 1)

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